



Birds Directive

EU measures to protect Europe's wild bird species.

Overview

Preserving and restoring biodiversity is one of the EU's top priorities. The Birds and [Habitats Directives](#) form the cornerstones of EU biodiversity policy. They provide a strong legislative framework for all EU countries to protect the most valuable and threatened biodiversity.

Wild birds form an important part of this rich natural heritage. Around 500 bird species have made Europe their home. However, over a third are threatened or have a poor conservation status.

Habitat loss and degradation are the most serious threats to their conservation. Urban sprawl and transport networks have fragmented and reduced the birds' habitats. Intensive agriculture, forestry, and the use of pesticides have diminished their food supplies, resting places and nesting habitats. They are also heavily impacted by pollution, unsustainable hunting, inadequate building designs and illegal killing.

Objectives

The Birds Directive aims to protect all naturally occurring wild bird species present in the EU and their most important habitats. In addition to halting the decline or disappearance of bird species, the Directive aims to allow bird species to recover and thrive over the long-term.

To achieve these aims, EU countries are required to take any necessary measures to maintain or restore bird populations.

Law

The Birds Directive (Directive 79/409/EEC) was adopted in 1979. It is one of the first pieces of environmental legislation to be adopted by the EU. It was amended in 2009 ([Directive 2009/147/EC](#)) - changes were made to Annex II, part B, due to the accession of new Member States. See a [summary of the Birds Directive and related acts](#).

The Birds Directive requires all Member States to protect all wild bird species and protect and restore their habitats. The Commission prepared a [list of all regularly and naturally occurring wild bird species within the EU](#).

Protecting all wild bird species

Member States must prohibit on the entire country's territory for all wild bird species:

- deliberate killing or capture by any method
- deliberate destruction of, or damage to, nests or eggs, or removal of nests
- taking their eggs in the wild and keeping them even empty
- deliberate significant disturbance, particularly during breeding and rearing
- the use of any method for large-scale and non-selective capture or killing, such as with nets, cages and glue
- the keeping, transport and sale of specimens, alive or dead, taken from the wild.

To clarify the legal provisions and provide practical advice to support their implementation, the Commission produced [a guidance document](#) on the provisions of Article 5 and Article 9 of the Directive.

Protecting and restoring birds' habitats

For **all wild bird species**, Member States must preserve, maintain and re-establish bird habitats to ensure a sufficient diversity and area of habitats.

For **threatened bird species**, Member States must classify [Special Protection Areas \(SPAs\)](#) for 197 [species and subspecies listed in Annex I](#) of the Birds Directive, as well as for other migratory birds, paying particular attention to the protection of wetlands of international importance.

SPAs are protected areas that form an integral part of the Natura 2000 network, which also includes Special Areas of Conservation (SACs) designated under the Habitats Directive. Collectively, these sites are often referred to as "Natura 2000 sites" and are now the largest coordinated network of protected areas anywhere in the world. Today,

thanks to the Birds Directive, Member States have classified **over 5400 SPAs** across the EU. Combined, this covers more than 832,000 km² of land and sea – an area greater than Germany, Poland and Greece put together.

In short, Member States must ensure that in all Natura 2000 sites:

- Damaging activities are avoided that could significantly disturb the species or deteriorate the habitats for which the site is designated; and
- Positive conservation measures are taken, where necessary, to maintain and restore the species present and their habitats, taking account of the economic, social and cultural requirements and regional and local characteristics of the area concerned.

There is also an obligatory permitting procedure for any plans or projects that are likely to have a significant effect on one or more Natura 2000 sites, either individually or in combination with other plans and projects.

2026 Assessment of Birds and Habitats Directives

In 2026, the European Commission began a [stress test](#) of the Birds and [Habitats](#) directives. It is part of the European Commission's wider initiative on simplification, aiming to enhance EU competitiveness while safeguarding economic, social, and environmental goals.

On 12 May, the Commission launched a [public consultation](#) on both directives, open until **10 August**. Contributions will feed into the stress test.

Species protection

Sustainable hunting

The Birds Directive recognises the legitimacy of hunting wild birds as a form of sustainable use. It therefore allows the hunting of 84 huntable species listed in Annex II provided this is done in a sustainable manner that does not jeopardise their survival.

[Find out more about sustainable hunting under the Birds Directive.](#)

Illegal killing and trade in birds

Despite the prohibitions imposed by the Birds Directive, the illegal capture, killing or trade in wild birds in the EU is still a major problem. An estimated 25 million birds are killed

every year around the Mediterranean Basin alone as they migrate between Europe and Africa.

[See how the Commission addresses illegal killing and trade in birds.](#)

Birds@Farmland Initiative: EU initiative to create 22 conservation schemes to save farmland birds

Common farmland birds are declining far more rapidly than other European bird species. According to [Farmland Bird Index](#)  there has been a 52% decline in farmland birds between 1980 and 2021.

The European Commission launched the **Birds@Farmland initiative** in 2020, to develop tools to support farmland bird conservation in the EU. The project focussed on 10 Member States (Austria, Bulgaria, Czechia, Germany, Spain, Finland, France, Hungary, Italy, and Portugal), but its findings are highly relevant for all Member States.

The initiative produced several [factsheets and reports](#), in particular:

- The description of ten major agricultural systems that constitute suitable habitats for unsecure or declining populations of farmland bird species, which are significantly present in several EU Member States
- The description of fifteen flagship farmland species that represent the threats and pressures on the ten agricultural systems and have an umbrella effect
- 22 conservation schemes in ten Member States with a set of measures to maintain or restore suitable habitats for farmland bird species on one of the ten agricultural systems or for one of the fifteen flagship species
- A final conference on lessons learnt from the project and on effective ways to address farmland bird conservation held on 11 October 2022

The **22 farmland bird conservation schemes (CSs)** focus on important agricultural systems or particular flagship birds, that were selected on the basis of scientific criteria and practical experiences brought in by stakeholders. Examples of the conservation schemes include bird-friendly management of rice fields in Bulgaria, Portugal and Spain, the creation of grassy field margins in Italian arable land, the maintenance of Corncrake habitats in France and of Grey Partridge and Northern Lapwing habitats in Germany. They are designed for full, or at least partial integration in the national CAP Strategic Plans. So far, more than half of them have been fully or partially included. CSs that were not taken up are, nevertheless, available to be integrated at a later stage. The Member States might also consider testing the schemes as pilots through other funding instruments.

Several EU funding instruments - including **LIFE** and **CAP** – offer a range of [opportunities to fund the conservation and recovery of farmland bird species](#).

Links

- Folder with [Agricultural Systems factsheets](#)
- Folder with [Flagship Species factsheets](#) (EN versions from page 5)
- Folder with [Conservation Schemes factsheets](#) (EN versions from page 3)

Documents from the stakeholder consultation workshops

- [Workshop 1: EU-level co-creation workshop, 25 June 2021](#)
- [Workshop 2: EU-level closing conference, 11 October 2022](#)
- [National workshops: Different countries in the period April-June 2022](#)

Cormorants

Managing conflicts between cormorants and human socio-economic interests

As a result of conservation efforts, European populations of the great cormorant (*Phalacrocorax carbo*) have increased across most regions in recent years. This population expansion has led to increasing conflicts of cormorants with fishing activities, including aquaculture and recreational angling.

To support stakeholders in the management of such conflicts, the Commission launched in 2010 the EU CorMan project. This project aimed to inform stakeholders, in particular actors involved in fisheries and aquaculture, about the ecology of this bird, as well as provide good practices and measures that have been used successfully to manage such conflicts. CorMan built on previous EU-funded work, notably the REDCAFE Concerted Action and the INTERCAFE Cost Action.

This information was extensively updated in May 2024. The following documents are available:

- [Cormorant ecology FAQ](#) to better understand its biology, ecology and behaviour;
- [Cormorant numbers and distribution in Europe](#), explaining the monitoring and counting of cormorant numbers in the EU;
- [Interactions between cormorants, fish, and fisheries](#), which are the most common sources of conflict;
- [Management of cormorant-fishery conflicts](#) – a synthesis of information on management measures and tools used to reduce cormorant problems for fisheries;
- [Social, cultural, and legal aspects of cormorant-fishery issues](#), as well as the ecology of birds and fish, numerous important social factors require similar

consideration;

- **An extensive bibliography** on the most important publications on the issue (over 5,000 publications), accompanied by a keywords search tool.

See also the Commission Guidance document: [Great cormorant. Applying derogations under Article 9 of the Birds Directive 2009/147/EC](#)

European Bird Species Action Plans

Since 1993, the EU has funded the development of [European Bird Species Action Plans for over 60 of the most threatened species listed in Annex I of the Birds Directive](#). The plans are designed to help Member States fulfil their obligation to restore and maintain bird populations to good conservation status. The Commission developed two reviews of the implementation of the plans in [2010](#) and 2013.

Each plan analyses and evaluates the specific threats faced by the species and its habitat and prescribes the most suitable conservation actions to be implemented in the EU, and beyond. The actions are compiled by qualified experts and consulted extensively with stakeholders and government authorities across Europe.

Bird species considered priority for funding under LIFE

Unlike the Habitats Directive, the Birds Directive does not distinguish between priority and non-priority species. However, the LIFE Regulation provides a possibility to adopt a list of bird species considered as priority for funding under the LIFE programme. LIFE projects that focus on practical conservation measures for any of the species or sub-species on the list can benefit from a higher EU co-funding rate, up to 75 %.

The [current version of the list, agreed by the Ornis Committee on 28 April 2021](#), takes into account the most recent available data on status and trends of bird populations in the EU (as reported by Member States to the Commission in 2019). For more details please check the [LIFE website](#).

European Red list of birds

Every ten years, Birdlife International assesses the regional extinction risk of all 544 species of birds occurring regularly and naturally in Europe (54 countries). Evaluating the extinction risk of each species helps to inform decision making at national, EU and pan-European level.

As part of the latest [European Red list update in 2021](#) [↗](#), Birdlife International also assessed the population state of birds in the EU (27 Member States plus UK) based on

the Member States reports under Article 12 of the Birds Directive. Visit the [Birdlife International Data zone](#)  for individual factsheets on all bird species at European and EU level.

Reporting

Reporting on the population status and trends of birds under Article 12

Every six years, Member States must report on the population status of species protected under the Birds Directive that are present on their territory. The Commission compiles and assesses this data. This results in an EU status assessment of all European birds across their natural range within the EU, and not just in protected areas.

The results are published, together with the results concerning habitats and species (from the Habitats Directive) in a '**State of Nature in the European Union**' report. The [last report, published in 2020](#), presents the results of the 3rd reporting cycle for the period 2013–2018.

The latest State of Nature report has concluded that almost half of all European wild bird species (47%) have a good population status, despite the immense pressures they continue to face. On the other hand, around 39% still have a poor or bad status.

The next report, due in 2025, will cover the period 2019-2024. Materials for the competent reporting authorities are available on the [Art.12 reporting reference portal](#) of the European Environment [Agency](#).

Reporting period 2013-2018

- [The State of Nature in the EU \(leaflet\)](#)
- [The State of Nature in the EU \(brochure\)](#)
- [The state of nature in the European Union – Report on the status and trends in 2013-2018 of species and habitat types protected by the Birds and Habitats Directives \(European Commission report, 20 pages\)](#)
- [State of nature in the EU - Results from reporting under the nature directives 2013-2018 \(EEA report, 140 pages\)](#)
- [National summary dashboards \(online\)](#)
- [National summaries \(pdf\)](#)
- [EEA webpage on State of Nature 2020](#)
- [Explore the State of Nature data!](#)

Derogation reporting under Article 9

Under specific conditions described in Article 9 of the Birds Directive, Member States may derogate (grant exceptions) from the provisions of species protection under Articles 12 to 15 of the Directive. Derogations are only allowed if there is no other satisfactory solution and the consequences of these derogations are not incompatible with the overall aims of the Directive.

Member States must report all derogations to the Commission on a yearly basis. The Commission then assesses the reports to ensure full compliance with Article 9. If the Commission identifies issues, it communicates these to the Member State concerned.

To facilitate the task of reporting derogations, the Commission has developed an online reporting tool, [Habides+](#), which is supported by the European Environment Agency.

The Commission also regularly produces [composite derogation reports](#) which provide a consolidated EU level analysis of the Member States' annual reports. In the interests of transparency and to facilitate access to the information submitted by the Member States, the Commission has developed [online derogations data viewers](#).

Tools

Derogation reporting: interactive data viewers

The Commission has developed interactive data viewers which present detailed information on the derogations submitted by the Member States, as well as statistics on the completeness of these reports.

[Overview of derogations and exceptions to species protection across the EU](#)

[Individual derogations and detailed information about them](#)

[Data completeness of national reports on derogations and exceptions](#)

Other tools

[Natura 2000 Viewer](#)

Find a Natura 2000 site by Birds Directive Sites or Habitats Directive Sites.

[Natura 2000 barometer](#)

Overview of Natura 2000 sites covered by the Birds and Habitats Directives.

Publications

- [The EU Birds and Habitats Directives](#) (in all languages)
- [Guidance on the protection of bird species under the Birds Directive](#)
- [The Birds Directive – 40 years of conserving our shared natural heritage](#) [\(in English\)](#)
- [The State of Nature in the EU - Conservation status and trends of species and habitats protected by the EU Nature Directives 2013–2018](#)
- [Sustainable hunting under the Birds Directive](#)
- [Financing Natura 2000: EU funding opportunities in 2021-2027 : revised report May 2022](#)
- [Farming in Natura 2000](#)
- [EU Strategic Approach to Raptor Conservation](#) (2019)
- [Brochure on Conservation and Recovery of threatened bird species in the EU](#) (2012)
- [The European Red list of birds](#) [↗](#)

- [The Natura 2000 newsletter](#)

[See the latest publications](#)

Related links

Main laws: Birds Directive ([Directive 2009/147/EC](#)), [Nature Restoration Law](#)

Related topics: [Habitats Directive](#), [Natura 2000 Network](#)

Related strategies: [Biodiversity strategy for 2030](#), [Environment action programme to 2030](#)

Related Commission priorities: [European Green Deal](#)

Contact

For questions about EU environmental policy, please contact [Europe Direct](#).

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Related Events

Conferences and summits

[This is a Test](#) Thursday 29 October 2026, 09:00 - 17:00 (CET)

Conferences and summits

[Water Resilience Stakeholder Platform Launch Event](#) Monday 21 September 2026, 09:00 - 14:00 (CEST) Brussels, Belgium

Partner meetings

8th Zero Pollution Stakeholder Platform meeting - Mid-Term Review

📅 Thursday 29 January 2026, 09:30 - 12:30 (CET)
📍 Brussels, Belgium

[See all →](#)

Related Publications

Staff working document | 6 August 2026

[Staff working document on Natura 2000 and sustainable tourism](#)

Guidance note | 31 March 2026

[Guidance document on the general system of protection of bird species - Article 5 and Article 9 of the Birds Directive](#)

Annex | 25 March 2026

[Guidance on adapting Natura 2000 sites to climate change](#)

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